

Court No. - 47

Case :- WRIT - C No. - 15062 of 2020

Petitioner :- Praksh Khare (Since Deceased)

Respondent :- The Collector Kanpur Nagar And 2 Others

Counsel for Petitioner :- Vipul Pandey

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

At the request of the learned counsel petitioner,
let the matter be placed as unlisted on 8th
October, 2020.

Order Date :- 30.9.2020

Shahnawaz

Court No. - 46

Case :- WRIT - C No. - 15062 of 2020

Petitioner :- Praksh Khare (Since Deceased)

Respondent :- The Collector Kanpur Nagar And 2 Others

Counsel for Petitioner :- Vipul Pandey

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Let the matter be placed as unlisted on 22.10.2020, showing the name of Sri Pranjal Mehrotra as counsel for the respondents.

Order Date :- 8.10.2020

Kpy

Court No. - 46

Case :- WRIT - C No. - 15062 of 2020

Petitioner :- Praksh Khare (Since Deceased)

Respondent :- The Collector Kanpur Nagar And 2 Others

Counsel for Petitioner :- Vipul Pandey

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra,Suman Kumar Yadav

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Learned counsel for the petitioner submits that inadvertently the petitioner could not mention the prayer for quashing of the order dated 1.6.2019 and the consequential proceeding arising there from in the writ petition, as such the amendment application has been moved to allow him to incorporate the relief as mentioned in the amendment application by adding prayer "C".

The learned counsel appearing on behalf of the respondents has no objection. Accordingly, the amendment application is allowed. The petitioner is directed to make necessary amendment by incorporating the prayer in the prayer clause of the writ petition by the next date of listing.

The learned counsel appearing on behalf of the Power Corporation is granted ten days time to seek instruction.

Put up this case in the additional cause list in the week commencing 9th November, 2020 before the appropriate Bench.

Order Date :- 22.10.2020

Shahnawaz

Court No. - 46

Case :- WRIT - C No. - 15062 of 2020

Petitioner :- Praksh Khare (Since Deceased)

Respondent :- The Collector Kanpur Nagar And 2 Others

Counsel for Petitioner :- Vipul Pandey

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra,Suman Kumar Yadav

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Heard Sri Vipul Pandey, learned counsel for the petitioner, Sri Mukesh Kumar Mishra, learned Advocate holding brief of Sri Pranjal Mehrotra, learned counsel for the respondent no.2 and learned Standing Counsel for the respondent nos.1 and 3.

Earlier the recovery proceedings were initiated against the father of the petitioner and he filed a writ petition being Writ C No.13779 of 2019 (Prakash Khare vs. The Collector Kanpur Nagar and 2 others). The said writ petition was disposed of vide order dated 22.4.2019 with the following observations:

"Heard learned counsel for the petitioner Sri Vipul Pandey, learned Chief Standing counsel and Sri Suman Kumar Yadav learned counsel for the respondent no.2.

By means of present writ petition, the petitioner seeks correction of his electricity bill raised by Kanpur Electric Supply Company Limited-respondent no.2. Petitioner may approach the respondent no.2 under the provisions of Clause 6.5.B of Electricity Supply Code 2005 for correction of his bill. In case the petitioner makes an application before the respondent no.2 within a week from the date of issuance of certified copy of this order, the same shall be disposed by the appropriate authority of respondent no.2 in accordance with law within 15 days thereafter.

The writ petition is disposed of as above. No costs."

In pursuance of the said order, the Executive Engineer, Urban Electricity Distribution Division, Division Dada Nagar, District Kanpur Nagar rejected the claim of the petitioner by order dated 1.6.2019 which is under challenge in the present writ petition.

Learned counsel for the respondent no.2 has raised the preliminary objection that against the order dated 1.6.2019 petitioner has an alternative remedy under Clause 7.10 Sub Clause (iii) of Uttar Pradesh Electricity Supply Code, 2005 to file a complaint in the Consumer Grievance Redressal Forum and as such the present writ petition may not be entertained.

In view of the preliminary objection made by the petitioner which is not disputed by the counsel for the petitioner, we are not inclined to entertain the present writ petition. The writ petition is accordingly dismissed.

The petitioner, if so advised, may avail the alternative remedy as available to him under the law.

Order Date :- 9.11.2020

Deepika